

TYPES OF BODIES/AUTHORITIES IN INDIA

Type of Body	Formation	Examples	Powers
Constitutional Bodies [UPSC 2023]	Established by the Constitution itself	Election Commission, Finance Commission, UPSC, CAG	Powers defined in the Constitution
Extra/Non-Constitutional Bodies	Created by the administrative decisions	National Development Council, various advisory bodies	Varies based on the governing framework
Statutory Bodies	Established by an Act of Parliament or state legislature	Reserve Bank of India, Securities and Exchange Board of India (SEBI)	Powers defined by the enabling statute
Judicial Bodies	Established under the Constitution or legislation	Supreme Court, High Courts, Subordinate Courts	Adjudicative powers; interprets laws and resolves disputes
Executive Bodies	Established by the Constitution or legislation	Council of Ministers, various ministries	Executes laws and administers governance
Quasi-Judicial Bodies	Created by statutes or regulations	Central Administrative Tribunal, State Consumer Disputes Redressal Commissions	Limited judicial powers; can make decisions based on law and facts

SALIENT FEATURES OF CAG, ELECTION COMMISSION (ECI), UPSC AND SPSC

Category	Comptroller and Auditor General	Election Commission	Union Public Service Commission	State Public Service Commission
Articles/Acts	Articles 148 to 151, Part V	Article 324, Part XV	Article 315 to 323, Part XIV	Article 315 to 323, Part XIV
Head	Comptroller General	Chief Election Commissioner (CEC)	Chairman	Chairman
Members	Single Member	2 Election Commissioners [UPSC 2017]	10 Members	5 Members
Appointment	President	President	President	Governor
Qualification	Not specified	Not specified	50% must hold 10 years of service in GoI/State	50% must hold 10 years of service in GoI/State
Term	6 years or till 65 years	6 years or till 65 years	6 years or till 65 years	6 years or till 62 years
Conditions to Resign	Addressed to the President	Addressed to the President	Addressed to the President	Addressed to the Governor
Renewal	Not allowed	Not Allowed	Not allowed	Not allowed
Future Employment	Not allowed	If Election Commissioner is appointed as Chief Election Commissioner, his/her term of office shall not be more than six years in aggregate as the Election Commissioner and the Chief Election Commissioner.	Members not eligible for reappointment but can become Chairman of UPSC	Members not eligible for reappointment but can become Chairman of UPSC/SPSC

Expenses	Charged on Consolidated Fund of India (CFI) Salary = SC Judge	Charged on Consolidated Fund of India (CFI) Salary = SC Judge	Charged on Consolidated Fund of India (CFI) Salary = SC Judge	Not charged on Consolidated Fund of State (CFS) Salary = HC Judge
Functions	Audits expenditures from the Consolidated and Contingency Fund of India and State, along with public accounts. Audits government transactions related to debt, and issues reports to the President and Parliament. Guides the Public Accounts Committee of Parliament. [UPSC 2012]	Determines boundaries based on the Delimitation Commission Act . Election Management: Notifications, scrutiny of nominations, and recognizing political parties. Conduct of Elections: Cancels polls due to irregularities; advises on disqualifications. Publicity: Manages publicity rosters for political parties.	Ensures merit-based recruitment. Recommendations on civil service recruitment methods, candidate suitability, disciplinary matters, etc. Submits reports to the President, which are then presented to Parliament.	Consulted by the Governor for state judicial service appointments. Submits annual reports to the Governor for presentation to the state legislature.
Limitations	Secret Service Expenditure: Limits CAG's auditing role. CAG has no authority over the issuance of money from the Consolidated Fund.	Not applicable	Excluded from reservations, tribunal selections, and group C and D services; temporary appointments UPSC cannot select for temporary appointments exceeding one year.	Excluded from reservations, tribunal selections, and group C and D services; temporary appointments
Removal	By President on the basis of resolution passed by both houses of the parliament with special majority either on ground of proved misbehaviour or incapacity.	The CEC is removed in the procedure similar to that of a Supreme court Judge. The other Election Commissioners are removed on recommendation made by the CEC.	By President on grounds of insolvency, infirmity, or misbehaviour (Supreme Court advice binding)	By President on grounds of insolvency, infirmity, or misbehaviour (Supreme Court advice binding)

Note: Election Commission resolves the disputes relating to splits/mergers of recognized political parties. **[UPSC 2017]**
For recent updates concerning the appointment of Election commissioners please refer to 'Additional Information' provided on page 121.

JOINT STATE PUBLIC SERVICE COMMISSION (JSPSC)

- **Creation:** By Parliament on request of state legislatures.
- **Status:** Statutory, not constitutional.
- **Appointment:** Chairman and members appointed by the President.
- **Term:** 6 years or until age 62 years.
- **Annual Reporting:** Reports to concerned state governors.

SALIENT FEATURES OF ATTORNEY AND ADVOCATE GENERALS

Category	Attorney General	Advocate General
Articles/Acts	Article 76, Part – V. Part of the Union Executive. Highest law officer in the country.	Article 165, Part -VI. Part of the State Executive. Highest law officer in the state.
Head	Attorney General	Advocate General
Members	Single Member	One per State

Appointment	President	Governor
Qualification	Qualified to be Judge of SC i.e. Citizen of India, Must have been a judge of some HC for 5 years or An advocate of some HC for 10 years or An eminent jurist , in the opinion of the president.	Qualified to be Judge of HC i.e. Citizen of India, Must have been in judicial service of the State for 10 years or An advocate of HC for 10 years .
Term	Pleasure of President	Pleasure of Governor
Conditions to Resign	By President [UPSC 2022]	By Governor
Renewal	Allowed	Allowed
Future Employment	Allowed	Allowed
Tenure Extension	Allowed	Allowed
Expenses	Not charged on Consolidated Fund of India (CFI)	Not charged on Consolidated Fund of the State
Independence	Cannot be varied	Cannot be varied
Functions	Chief legal advisor to the Union	Chief legal advisor to the state
Limitations	Cannot practice law	Cannot practice law
Removal	Resignation to the President. Conventionally, he/she resigns when the government (council of ministers) resigns or is replaced. [UPSC 2022]	Resignation to the Governor. Conventionally, he/she resigns when the government (council of ministers) resigns or is replaced.

Note: The Attorney General and the Advocate General both possess the **right to participate in the proceedings of the legislature, or their committees** of which they are a member. However they **do not enjoy the right to vote** in such proceedings. Also they **enjoy the privileges and immunities** available to members of legislatures. [UPSC 2013]

SALIENT FEATURES OF NCSC, NCST AND NCBC

Category	National Commission for SCs (NCSC)	National Commission for STs (NCST)	National Commission for BCs (NCBC)
Articles/Acts	Article 338, Part XVI	Article 338A, Part XVI	Article 338B, Part XVI
Background	• Originally: Art.338 provided for Special officers for SC & ST. • 1978: Non-statutory multi-member commission for SCs and STs (through resolution). • 1987: Commission renamed as National Commission for SCs & STs (through resolution). • 65th CAA 1990: Multi-member National Commission for SCs & STs with constitutional status. • 89th CAA 2003: Single commission separated into NCSC (Art. 338) & NCST (Art. 338 A). • The separate National Commission for SCs and STs came into existence in 2004.		• Originally: NCBC was set up in 1993 as a Statutory body according to the Mandal case judgement of SC (1992). • 102nd CAA, 2018: accorded Constitutional status with the insertion of new Art.338 B. [UPSC 2023]
Head/Members	Chair + Vice-Chair + 3 Members	Chair + Vice-Chair + 3 Members	Chair/Vice-Chair, 5 Members
Appointment	President	President	President
Qualification	Not specified	Not specified	Not specified
Term	3 years	3 years	3 years (not specified in the constitution but in NCBC Chairperson, Vice-Chairperson and Members (Conditions of Service and Tenure) Rules, 2018.)

Removal	By President	By President	By President
Renewal	Not allowed	Not allowed	Not allowed
Future Employment	Not allowed	Not allowed	Not allowed
Tenure Extension	Not allowed	Not allowed	Not allowed
Expenses	Consolidated Fund of India	Consolidated Fund of India	Consolidated Fund of India
Independence	Cannot be varied	Cannot be varied	Cannot be varied
Functions	Safeguards rights of SCs	Safeguards rights of STs	Safeguards rights of OBCs
Limitations	Not applicable	Not applicable	Not applicable
Removal	By President	By President	By President
Other Aspects	• Power of civil court in certain matters. • The Commission is vested with the power to regulate its own procedure. • Discharges similar functions regarding the Anglo-Indian Community. • Till 2018, the commission was also required to discharge similar functions with regard to OBCs. • It was relieved by the creation of NCBC (Art.338B).	• Power of civil court in certain matters. • The Commission is vested with the power to regulate its own procedure. • Measures for the implementation of the PESA Act, 1996. ○ Reduce and eliminate the shifting cultivation practice by tribals. • Improve relief and rehabilitation measures. • Prevent alienation of tribal people. • Conferring ownership rights in respect of MFPs.	• Power of civil court in certain matters. • The Commission is vested with the power to regulate its own procedure. • Participate and advise on the socio-economic development of Socially and Educationally Backward Classes.

SALIENT FEATURES OF FINANCE COMMISSION, GST COUNCIL AND SPECIAL OFFICER FOR LINGUISTIC MINORITIES

Category	Finance Commission (UPSC 2011)	GST Council	Special Officer for Linguistic Minorities
Article/Act	Article 280, Part XII	Article 279A, Part XII	Article 350B, Part XVII
Establishment	Quasi-judicial body, created every 5 years	101st Constitutional Amendment Act (2016)	7th Constitutional Amendment Act (1956)
Head	Chairman	Union Finance Minister	Commissioner for Linguistic Minorities
Members	Chairman + 4 members	State Finance Ministers & Union Minister of State for Finance	Assistant Commissioners in regional offices
Appointment	By President	By Presidential Order	By President
Term	5 years	Not applicable	Not specified
Resign	The President	Not applicable	Not specified
Renewal	Eligible for reappointment	Not applicable	Not specified
Future Employment	Not allowed	Not applicable	Not applicable

Expenses	Not charged on Consolidated Fund of India	State/Central Government	Central Government
Independence	Cannot be varied	Not applicable	Ministry of Minority Affairs
Quorum	Not applicable	50% of total members	Not applicable
Decision-Making	Advisory capacity only	3/4th majority of members present and voting	Not applicable
Vote Weight	Not applicable	Centre: 1/3rd; States: 2/3rd	Not applicable
Functions	Allocation of tax proceeds between the Centre and States. Recommends principles for grants to States from the Consolidated Fund of India. Suggests measures to augment a State's Consolidated Fund based on State Finance Commission recommendations. Advises on financial issues referred by the President.	Recommendations on taxes, cesses, and surcharges that should be merged into GST. Proposing special rates to raise additional resources during natural calamities or disasters. Making special provisions for certain northeastern and hilly states, including Arunachal Pradesh, Assam, Jammu & Kashmir , and others.	Safeguards the rights of linguistic minorities.
Reporting	Submits report to the President	Recommendations to Centre and States	Submits reports to the President through Union Minority Affairs Minister
Limitations	Recommendation advisory	Not applicable	Not specified
Removal	By President	Not applicable	Not specified
Location of Headquarters	Not specified	New Delhi	New Delhi, with regional offices in Belgaum, Chennai, and Kolkata
Special Provisions	Constitutionally mandated	Special provisions for hilly and northeastern states	Not applicable
Other Aspects	Balances fiscal federalism	Permanent invitee: Chairperson of Central Board of Indirect Taxes and Customs-CBIC (non-voting)	Oversees compliance with constitutional provisions for linguistic minorities

Additional Information:

- 1st Finance Commission Chairperson (1951): **K C Neogy**.
- 15th Finance Commission Chairperson (2021): **N K Singh**.
- **Criteria** for devolution of the 15th Finance Commission:
 - 12.5% weightage to **demographic performance**,
 - 45% to **income**.
 - 15% each to **population**
 - 15% to the **area**.
 - 10% to **forest and ecology**.
 - 2.5% to **tax and fiscal efforts**. [UPSC 2023]

Appointment of Chief Election Commissioner (CEC) and Other Election Commissioners (ECs)

- **Previous System:** CEC and ECs appointed by the President on the Central Government's recommendation.

- **Anoop Baranwal vs Union of India (2023):** SC recommended independent Selection Committee for CEC and ECs, based on Dinesh Goswami Committee (1990) & Law Commission's 255th Report (2015): Comprising Prime Minister, Chief Justice of India, Leader of Opposition (or largest opposition party in Lok Sabha).
- **Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service, and Term of Office) Act, 2023:** Replaces Election Commission Act (1991), covering appointments, salaries, and dismissal procedures.
 - **Selection Process:** President appoints CEC and ECs based on a three-member Selection Committee (Prime Minister, Union Minister, Leader of Opposition).
 - **Search Committee:** Headed by Cabinet Secretary, suggests five candidates to the Selection Committee, which can consider other names.

